

24NNCV01787 24NNCV01787

County: los-angeles

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Case Number: 24NNCV01787 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: Add-On 1

Date: June 26, 2026

Case No: 24NNCV01787 Trial Date: August 10, 2026

Case Name: Moore v. LDI Trucking, Inc., et al.

MOTION TO COMPEL PRODUCTION OF DEFENDANTS' IME REPORT

[CCP § 2032.620 subd. (a)]

Moving Party: Plaintiff, Darien Moore

Responding Party: Defendants, LDI Trucking, Inc. and Delmy Carolina Polanco Hernandez

RELIEF REQUESTED:

An order compelling Defendants to produce the IME report for the IME conducted on Plaintiff.

CAUSES OF ACTION: from Complaint

1) General Negligence

2) Motor Vehicle

SUMMARY OF FACTS:

Darien Moore ("Plaintiff") alleges that on March 7, 2023 on the I-210 Freeway near Madre Street, LDI Trucking, Inc. and Delmy Carolina Polanco Hernandez (collectively, "Defendants") negligently owned, maintained, controlled, managed, entrusted, hired, supervised, drove, manufactured, operated, repaired, distributed and inspected their vehicles and one another so as to cause same to collide with Plaintiff, thereby causing injuries and damages to Plaintiff.

ANALYSIS:

"If a party submits to, or produces another for, a physical or mental examination in compliance with a demand under Article 2 (commencing with Section 2032.210), an order of court under Article 3 (commencing with Section 2032.310), or an agreement under Section 2016.030, that party has the option of making a written demand that the party at whose instance the examination was made deliver both of the following to the demanding party:

(1) A copy of a detailed written report setting out the history, examinations, findings, including the results of all tests made, diagnoses, prognoses, and conclusions of the examiner.

(2) A copy of reports of all earlier examinations of the same condition of the examinee made by that or any other examiner."

(CCP § 2032.610, subd. (a).)

"If the option under subdivision (a) is exercised, a copy of the requested reports shall be delivered within 30 days after service of the demand, or within 15 days of trial, whichever is earlier." (CCP § 2032.610, subd. (b).)

"If the party at whose instance an examination was made fails to make a timely delivery of the reports demanded under Section 2032.610, the demanding party may move for an order compelling their delivery. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (CCP § 2032.620, subd. (a).)

On September 18, 2025, Defendants served "Defendants' Demand for Independent Medical Examination of Plaintiff Darien Moore." (Goldstein Decl., Ex. 1.) On September 19, 2025, Plaintiff served an objection and response to the demand, demanding a copy of the report within 30 days thereafter pursuant to CCP § 2032.610. (Goldstein Decl., Ex. 2.) On October 8, 2025, Dr. Michael P. Weinstein conducted the medical examination on Plaintiff. (Mot., p. 5.) Accordingly, the report was due to Plaintiff's counsel by November 7, 2025. Defendants' counsel served a copy of the report on June 11, 2026, however Plaintiff asserts that the report is invalid because it does not include Dr. Weinstein's diagnoses, prognoses and opinions. (Goldstein Decl., Ex. 7.)

In the opposition, Defendants assert that they "have produced the only existing draft of the IME report sought to be compelled." (Opp., p. 2:17-18.) Defendants further assert that Dr. Weinstein's diagnoses, prognoses, and conclusions are included in the report under the "Assessments" and "Discussion" headings. (Opp., p. 2:21-22; Rodriguez Decl., ¶¶ 10, 12, Ex. B.) Defendants nonetheless concede that the report is an incomplete draft as the report indicates that Dr. Weinstein required additional records and diagnostic studies to finalize his opinions. (Opp., p. 3:23; Rodriguez Decl., ¶ 10, Ex. B.) Defendants thereafter provided Dr. Weinstein with a complete set of Plaintiff's medical records. (Rodriguez Decl., ¶ 11.) Dr. Weinstein's office has now represented that the new draft of the IME report is anticipated to be finalized on June 24, 2026 at the latest. (Rodriguez Decl., ¶¶ 15-16.) Defendants assert that they will produce the report to Plaintiff immediately upon receipt. (Rodriguez Decl., ¶¶ 15-16.)

Because the hearing on this motion is scheduled for June 26, 2026, after the date Defendants represent that the report will be finalized and sent to Plaintiff, the relief requested by this motion may be rendered moot. Accordingly, the Court will request confirmation at the hearing that the report has been provided to Plaintiff.

Upon confirmation at the hearing that the report has been received, the motion will be denied as MOOT.

Request for Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel delivery of medical reports under this section, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP § 2032.620, subd. (b).)

Plaintiff requests sanctions in the amount of \$2,060.00. Presuming that the report has been provided to Plaintiff prior to the hearing on this motion, the request for sanctions will be DENIED. However, if the report is not provided before the hearing, the Court will award sanctions of \$1,200.00 in attorneys' fees with the Court reducing the attorney hours to 3 hours at \$400.00 per hour for a total of \$1,200.00 in attorneys' fees.

RECOMMENDED RULING:

Plaintiff Darien Moore's Motion to Compel Production of Independent Medical Examination Report is MOOT, pending confirmation at the hearing that Plaintiff has received the finalized report.

If the report has not been produced by the hearing date, then the report must be produced by July 6, 2026 by no later than 5p.m.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.